

QUÉBEC
LAVAL REGION

COMMISSION DES DROITS DE LA
PERSONNE ET DES DROITS DE LA
JEUNESSE DU QUÉBEC

**CENTRE DE RECHERCHE-ACTION
SUR LES RELATIONS RACIALES
("CRARR")**

A legal person whose head office is
located at 460, Saint-Catherine West,
suite 610, Montreal, Québec H3B 1A7

Complainant acting on behalf of
Mr. **James Robert McGovern**
acting in his own name and on
behalf of his daughter **Paisley
Tsannie McGovern**

and

On behalf of **Barran Tsannie
McGovern**

Victims

v.

**CENTRE INTÉGRÉ DE SANTÉ ET DE
SERVICES SOCIAUX DE LAVAL
("CISSS-LAVAL")**

A legal person whose head office is
located at 1755 René-Laennec, Laval,
Québec H7M 3L9

Respondent

COMPLAINT

of discrimination based on race intersecting with language and social condition
and violation of ss. 1, 4, and 12 of the *Quebec Charter of Human Rights and
Freedoms*

THE FACTS

The Victims

1. Mr. James McGovern (hereafter, “the Victim Father”), on whose behalf CRARR files this complaint, is an English-speaking White man in his fifties and a resident of Laval. He is the father and primary caregiver of Paisley Tsannie McGovern (hereafter, “the Victim Daughter”) and Barran Tsannie McGovern (hereafter, “the Victim Son”), over whom he has full custody.
2. The Victim Father is separated from and lives in a separate home than the Victim Daughter’s and the Victim Son’s biological mother, an Indigenous woman from a First Nations community, the Hatchet Lake Denesuline Nation from Wollaston Lake, Saskatchewan. The mother is presently a resident of Montreal.
3. The Victim Daughter, born in Montreal, and the Victim Son, born in Saskatoon, are Indigenous on their mother’s side and English-speaking. At the time of the incident giving rise to the present complaint, the Victim Daughter was 10 years old and the Victim Son was 16 years old.
4. He is the children’s primary caregiver and has full custody of both children.
5. The Victim Son has physical disabilities related to his obesity.
6. In the present complaint, the Victim Father acts in his own name and on behalf of his daughter, who is still a minor, while the Victim Son, now 18 years old, acts in his own name.

The Violent Crime Committed in February 2021

7. On February 14, 2021, the Victim Son was the victim of attempted murder after being stabbed three times by an unknown assailant, outside his mother’s home in the Notre-Dame-de-Grâce neighbourhood.
8. The Victim Daughter, while not a direct witness, was inside the residence when the incident occurred. She heard her brother’s screams of agony and pain, and feared that he would be killed.
9. The Victim Son’s injuries were severe, leading to a week-long hospital stay. The stabbing resulted in wounds in his mid-torso, which required extensive stitching and have left scars.
10. The event left both the Victim Son and the Victim Daughter with severe psychological trauma which led the Victim Father to urgently seek out psychological assistance for them.

CISSS-Laval’s Inadequate Handling of Victim Family File

11. Following the attack, the Victim Father reached out to the Centre Intégré de santé et de services sociaux de Laval (CISSS-Laval) (hereafter, “the Respondent”), tasked to maintain, improve and restore the health and well-being of the Quebec population through making integrated and quality health and social services available to them, to begin the process of getting assistance for his children.
12. In April 2021, the Victim Father requested that the Respondent provide a psychologist. This marked the beginning of the Directeur de la protection de la jeunesse’s (hereafter, “the DPJ”) intervention in the case.
13. Among the listed care & services of CISSS Laval is youth protection at the Child and Youth Protection Centre.

14. In April 2021, Tanya Lechasseur (hereafter, “Mme Lechasseur”) was appointed by the Respondent to the Victim Father’s file. Per her mandate, she was to assist both the Victim Daughter and the Victim Son with their recovery from the traumatic event by designing an intervention plan and ensuring its implementation.
15. Mme Lechasseur communicated with the family in average English.
16. In July 2021, the DPJ allegedly began steps to obtain the Victim Daughter’s Indian status card to ensure that she could enroll in culturally sensitive services for Indigenous peoples in Quebec. However, the Victim Father confirmed that no action was taken on the part of the DPJ to this effect.
17. Following weeks of inaction on the part of the DPJ, the Tribunal de la jeunesse ordered, on September 13, 2021, that the DPJ take the necessary actions to obtain the Victim Daughter’s Indian status card should they not be able to access it through the mother. The court decision is enclosed as **Exhibit 1**.
18. The court order was a result of the Victim Daughter’s strained relationship with her mother. As a result, the Tribunal ordered the DPJ to take the steps needed to liaise with the mother’s community of origin so that the Victim Daughter can get her Indian status card should the mother not be able give that information without delay.
19. Eventually, almost nine months later, in January 2022, the Victim Father was left to obtain the Indian status card on his own by reaching out to the Victim Daughter’s maternal Nation in Saskatchewan, an act that illustrates the apathetic and negligent attitude exhibited by the DPJ.
20. Neither the date of obtaining nor the steps taken to obtain the Indian status card were recorded by the DPJ, indicating further issues with recordkeeping.
21. Under Mme Lechasseur’s charge, the DPJ’s assistance was described by the Victim Father as sporadic, with Mme Lechasseur rarely meeting with the children. The interactions were characterized by asking questions about their home situation and their relationship with their mother.
22. For unclear reasons, Mme Lechasseur only met with the Victim Daughter and the Victim Son a total of three times in the span of eight months, mostly interacting with the Victim Father via text messages.
23. During the period of one year, the Victim Daughter—only benefited from two individual meetings with DPJ professionals, in stark contrast to ministerial standards for social follow ups, which must comprise of personalized meetings, every two weeks, that average between 60 to 90 minutes each.
24. On November 21, 2021, François Duffy (hereafter, “Mr. Duffy”) became the lead psycho-educator, replacing Mme Lechasseur on the file. The Victim Father reiterated his appeal for culturally sensitive psychological assistance in English for his children.

Lack of Adequate English-Language Resources and Services Affecting the Victim Family’s Recovery

25. Around Fall of 2021, the Victim Father requested that the DPJ transfer the Victim Son’s and the Victim Daughter’s file to Batshaw Youth and Family Centers (hereafter, “Batshaw”) as the latter provides services in English.
26. The Victim Father never received a response from the Respondent to this effect.
27. It appears that the existing government policy of being served by the DPJ in one’s local administrative region and place of residence, in this case the Laval Region, was the sole reason why the Victim Father’s request could not be accommodated.

28. A major concern of the Victim Father was that the Respondent's limited English-language services would lead to a lengthy delay and a lack of necessary services for the children, hence the request to transfer to Batshaw.
29. In the Victim Father's mind, his children's needs would be better served in English combined with cultural appropriate and sensitive cultural services for Indigenous people, given the children's Indigenous heritage.
30. Despite reaching out to Mme Lechasseur since April 23, 2021, and expressing the urgent need for DPJ's intervention, the response has been elusive. Mme Lechasseur has consistently maintained that such assistance was not explicitly mandated in the court judgment, prolonging the waiting period for essential support.
31. Consequently, in the Fall of 2021, the Victim Father took steps to contact a non-profit Indigenous organization, Native Montreal, in order to obtain psychological services for his children in English, which were not available.
32. In January 2022, nearly a year after the initial incident, the Victim Son was finally put on a waiting list to receive psychological support by the DPJ for the trauma suffered in the attack, per the Victim Father. The reason for being placed on a waiting list was due to staff shortage and the need to have an English-speaking professional, which the DPJ did not have. This professional would be made available to the Victim Son only in July 2022.
33. Despite obvious cultural and linguistic needs made clear by the Victim Father to the Respondent, namely the Victim Daughter's and the Victim Son's Indigenous backgrounds and English-speaking proficiency, they were both receiving non-Indigenous focused services in French, a language they are not fluent in.
34. According to the Victim Father, the DPJ environment lacked Indigenous service capacity from an English-speaking perspective.
35. Additionally, the Victim Father noted that since his dealings with the Respondent, the DPJ never informed him of his family's rights as guaranteed by Jordan's Principle, requiring that First Nations' children receive culturally appropriate services and supports that they need promptly.
36. In fact, it was only through his own Indigenous connections that the Victim Father, aware of Jordan's Principle, submitted a request for support for his children under such principle, and had to take the initiative to apply for financial and culturally adapted social service support with Native Montreal's assistance.
37. On May 16, 2022, the Victim Father formally requested an investigation by the Commission des droits de la personne et des droits de la jeunesse (hereafter, "the CDPDJ") into the treatment of the Victim Daughter and the Victim Son by the DPJ.
38. On August 11, 2022, the Victim Father also formally requested an investigation by the Protecteur de Citoyen du Québec (hereafter, "the PCQ") into the treatment of his family.

The Ordeal's Context and Continued Impact

39. In July 2022, nearly a year and a half since the beginning of the DPJ's intervention in the Victim Father's file in April 2021, following the Victim Son's physical assault in February 2021, a psychologist was made available by the Respondent for the Victim Son.
40. However, the Victim Father declined as he would rather use the services of Native Montreal, an Indigenous-centric service center located in Montreal.

41. Furthermore, the Victim Son did not find it necessary for the DPJ-provided psychologist to stay in his life until he is eighteen years old, as per the condition set by the psychologist.
42. On October 6, 2022, exasperated with the slow pace of the Respondent's intervention and the lack of progress in obtaining support for his children, the Victim Father found a psychologist who is specialized in trauma, paid for by "Indemnisation des victimes d'actes criminels" (IVAC), for the Victim Son.
43. In January 2023, a court hearing was held regarding the Victim Father's custody of the Victim Son and the Victim Daughter. The judgement stated that the court order from September 13, 2021, that granted the Victim Father intermediate custody of his children, was to be extended. A copy of the court decision, dated January 6, 2023 is enclosed as **Exhibit 2**.
44. The presiding Judge also noted that all the services obtained for the children resulted from the Victim Father's actions (at para. 30). It also rejected the DPJ's request to extend its involvement in the file for an additional period of 6 months due to poor psychological conditions of the children that resulted from parental conflict (para. 32) since in the Judge's opinion, these conditions were rather linked to the violent acts committed at the mother's home in 2021 (para.33).
45. In the same decision, the Judge ordered the DPJ intervention to be closed.

The PCQ's Response

46. In response to his complaint, the PCQ stated, in a letter to the Victim Father dated March 20, 2023, that the DPJ was responsible for providing psychological assistance for the children, with the Victim Son expected to receive all the necessary care and health services and therapeutics needed for his state of health. A copy of the PCQ letter is enclosed as **Exhibit 3**.
47. The PCQ acknowledged the confusion in obtaining psychological help for the Victim Son and the Victim Daughter, which it linked to confusion in service requests on the part of the Victim Father and the DPJ, but that DPJ staff "did not understand the reason for your continuous request for assistance for your children" and that the Victim Father's "needs and expectations should have been clarified" by the staff person in charge of the family file.
48. In the same letter, the PCQ also recognized, in stark terms, the lack of care shown by the DPJ:

Je constate également un manque de concertation entre les différents services impliqués auprès de vos enfants. En effet, votre intervenant aurait dû se concerter plus rapidement avec les partenaires susceptibles d'offrir des services à vos enfants de façon à mieux comprendre ce que chacun d'entre eux pouvait offrir. Il aurait également dû réaliser un plan de services individualisé (PSI). Ces démarches auraient permis de mieux répondre, en temps opportun, aux besoins de vos enfants.
49. The Victim Father considers this observation to be of crucial importance, because it illustrates the systemic barriers based on language and Indigenous heritage faced by his family in accessing the Respondent's services and resources, which created additional and undue burden for the family.
50. In the PCQ's letter, the Victim Father notes one very important observation:

Vos enfants ont attendu plusieurs mois, sur une liste d'attente, avant de recevoir les services requis. Pourtant, compte tenu de leur appartenance à une communauté autochtone, il aurait été pertinent de vérifier s'ils auraient pu bénéficier de services psychologiques plus rapidement en vertu du principe de Jordan. Je ne vois toutefois aucune mention de ce principe avant le mois d'avril 2022 dans leur

suivi à l'application des mesures. Les intervenants de la DPJ sont tenus de connaître et de respecter ce principe, lorsqu'applicable. (emphasis added)

51. The mention of Jordan's Principle in the PCQ's letter is extremely important and telling for the Victim Father. Jordan's Principle ensures that Indigenous children must be provided services that prioritize substantive equality, in a timely manner, by offering culturally sensitive supports that recognize the historical and contemporary challenges of many First Nations children.
52. The PCQ noted that due to the Victim Father's complaint to the Respondent's Complaints Commissioner, the Respondent recognized that a more pro-active approach from the staff person in charge of his file would be "souhaitable" and that three measures had been taken to:
 - 1) Remind in team meetings of the importance to ensure clients' needs are met throughout the DPJ process,
 - 2) Create personalized support plans when multiple agencies or services are involved and
 - 3) Remind staff of the obligation to respect Jordan's Principle.

The CDPDJ's Inadequate Response

53. On July 31, 2023, the CDPDJ responded to the Victim Father's complaint, stating the investigation had been closed subsequent to certain reviews and satisfactory resolutions of problems. A copy of the CDPDJ's letter is enclosed as **Exhibit 4**.
54. The CDPDJ confirmed in its response the multiple irregular and inadequate treatments the children received under the DPJ, such as:
 - 1) The Victim Son not being served for a period of almost seven months in 2022 due to staff shortage and the lack of English-speaking psychologists;
 - 2) The Victim daughter having, during one year, only two personalized meetings, which is contrary to ministerial standards for social follow up;
 - 3) Inexplicable delays to request necessary information from her mother's First Nations Band Council for her to obtain her Indian status card, and
 - 4) Poor recordkeeping.
55. The letter detailed the measures taken by the DPJ to address these issues that the Victim Father had described in his initial complaint.
56. It also informed the Victim Father that the CDPDJ ceased its intervention in the file as corrective measures had been implemented by the DPJ.
57. However, the CDPDJ's letter makes errors regarding important details, including the date the Victim Son was assaulted. It erroneously lists the date as February 19, 2021, which was in fact the date that the Victim Son was discharged from the hospital.
58. Beyond the listing of purported corrective measures taken by the DPJ in the response letter, the Victim Father failed to see evidence that corrections were made, and if or how they had made a difference in the DPJ's operations.
59. Furthermore, the Victim Father failed to see any concrete measure of accountability in the CDPDJ's intervention, since there were no clear explanations of who was responsible for these problems and why they existed in the first place.
60. For instance, regarding the breach of ministerial standards, the sole remedy offered in the response letter was a training offered in April 2023, without further explanations as to how it was conducted, how staff participation and evaluation

would be conducted or more importantly, what sanctions for such breaches would be.

61. On the issue of poor recordkeeping, the CDPDJ stated that a reminder by unknown persons was sent to DPJ staff about the importance of recordkeeping on August 29, 2022, and that a second memo was sent to all enforcement services staff on March 8, 2023, regarding recordkeeping, but that there was no indication of why poor recordkeeping occurred in the first place.
62. Furthermore, the specifics of the training were not offered nor was it made known whether Mme Lechasseur or Mr. Duffy attended this training.
63. More importantly, the Victim Father noted that Jordan's Principle is not even mentioned in the CDPDJ letter, received five months after the PCQ's letter, an omission which the Victim Father found particularly disturbing because the CDPDJ has the dual mandate of addressing systemic racism and discrimination in services.
64. The Victim Father was suspicious of the fact that despite its human rights mandate, the CDPDJ failed to note the systemic barriers that prevented his family from accessing "in a timely matter ... culturally sensitive supports" for Indigenous children.
65. The Victim Father was also skeptical of the CDPDJ's conclusion on the DPJ's legal obligation to translate reports into English because it did not address whether the same position would apply to Indigenous peoples who are English-speaking and who benefit from Jordan's Principle.
66. The Victim Father attributed the CDPDJ's complete failure to refer to Jordan's Principle to its lack of sensitivity to Indigenous rights and needs in social services as well as failure to understand and acknowledge systemic anti-Indigenous racism in youth protection.
67. The Victim Father considered the CDPDJ's approach as a form of systemic bureaucratic whitewash of the Respondent's systemic racial bias towards Indigenous children and families.
68. Dissatisfied with the CDPDJ's conclusion and its failure to address systemic flaws, the Victim Father complained to the CDPDJ about its service quality. On October 10, 2023, the CDPDJ, through the General Secretariat division, replied and indicated that his "intervention request has been investigated according to current standards." A copy of the letter is enclosed as **Exhibit 5**.
69. The CDPDJ's Service Quality Officer once again concluded that "the situation brought to our attention has been corrected and that there is no longer reason to believe that rights have been violated."
70. There was no acknowledgement of Indigenous needs and interests in the Officer's response.

Subsequent Reactions

71. For the Victim Father and the Victim Son, the responses from the CDPDJ were not fully satisfactory resolutions because the former did not acknowledge systemic barriers against Indigenous English-speaking families, nor did it confirm that systemic remedies had been implemented to ensure equitable access for Indigenous children and families in compliance with Jordan's Principle.
72. Both the Victim Father and the Victim Son also found the CDPDJ's answers evasive and lacking in transparency as the CDPDJ obviously avoided holding the DJP accountable, and that as a public authority with oversight powers over the DJP, the CDPDJ's standard intervention methods perpetuate systemic discrimination against Indigenous people, particularly English-speaking Indigenous people, who are in dire need of support and protection.

73. Regarding the PCQ's response, which the Victims found more sensitive to Indigenous concerns, they consider that the PCQ does not have enforcement or monitoring authority to ensure the implementation of its recommendations.
74. The entire saga has left the Victim Father, the Victim Son and the Victim Daughter more distrustful towards these youth protection agencies. They believe that the Respondent, with the mandate to assist victims of violence and protect the safety and development of children, simply did not fulfill its responsibility, leaving the family without the support they needed during unnecessarily prolonged periods and forcing the Victim Father to run around to obtain adequate culturally adapted support for his children in need.
75. The Respondent's refusal to explore arrangements with Batshaw for the Victim Son's and the Victim Daughter's needs so that they could receive full services in English represent, for the Victim Father's, a major systemic barrier that created additional hardship and adverse consequences for the family.
76. Furthermore, considering recent news stories and reports produced about the treatment of Indigenous patients in Quebec's health care system, the ordeal has led the Victim Son and the Victim Daughter to lose faith that they could ever be properly treated because of their Indigenous heritage and status.
77. This incident has reinforced the family's perception that the healthcare system neglects the needs of Indigenous people, lacking both empathy and urgency.
78. February 14, 2024, marks three years since the Victim Son and Victim Daughter's lives were irrevocably changed. The two are still dealing with the ramifications of that day, with the Victim Son still experiencing health issues from the stab wounds and both still dealing with the psychological issues created by the violent assault.
79. The Victim Son and Victim Daughter were given inadequate services by the Respondent that did not benefit them, despite expecting to receive assistance, thus compounding the trauma they experienced on February 14, 2021. The experiences they had with the services that were expected to assist them recover has only compounded the trauma they experience on February 14, 2021.
80. In order to ensure the full protection of their rights, the Victim Father, on behalf of himself and the Victim Daughter, and the Victim Son mandated CRARR to file a complaint on their behalf with the Quebec Human Rights and Youth Rights Commission (hereafter, "the Commission"), in order to protect their rights and freedoms. The mandate prepared pursuant to the *Quebec Human Rights and Youth Rights Charter* (hereafter, "the Charter") is enclosed as **Exhibit 6**.

THE CIVIL RIGHTS VIOLATIONS

81. Complainant CRARR respectfully submits that based on the facts alleged above, the Victims, James Robert McGovern, Barron Tsannie McGovern and Tsannie Paisley McGovern, have been victims of discrimination based on race intersecting with language and social condition at the hands of Respondent CISSS-Laval.
82. Complainant CRARR respectfully submits that the present complaint must be contextually assessed by the Commission from the perspective of systemic anti-Indigenous racism that takes into consideration the patterns of discriminatory and negative treatment of Indigenous people by health and social service institutions in Quebec, particularly English-speaking Indigenous people.
83. Complainant CRARR respectfully submits that the Respondent's lack of information and action in relation to Jordan's Principle constitutes a key and *prima facie* element of systemic race discrimination against the Victims.

84. Complainant CRARR respectfully submits that the Respondent's failure to act in accordance with Jordan's Principle in providing adequate and timely support to the Victims, barely seven months after the tragic death of Joyce Echaquan in a Quebec hospital in September 2020 and even after the publication in September 2021 of the Coroner's Report on the tragedy, reflects deep-rooted systemic bias, blindness to Indigenous needs and discrimination towards the Victims;
85. Complainant CRARR respectfully submits that the following institutional policies, practices and actions, or lack thereof, be considered as crucial and relevant evidence of systemic racism directed at the Victims:
 - 1) The failure to mention Jordan's Principle to the Victim Father, and to assist the Victims in accessing and implementing resources according to said Principle;
 - 2) The failure to take rapid and necessary positive equity measures to provide to the children psychological and equivalent services in English and adapted to their Indigenous heritage;
 - 3) The failure to undertake rapid measures to obtain the necessary information and documentation from the mother's Band Council in Saskatchewan in order to ensure rapid obtention of the Indian status card access to culturally appropriate services and resources;
 - 4) The failure to keep proper records of services and treatments;
 - 5) The failure to respect and apply ministerial standards for social follow up requiring personalized meetings averaging 60 to 90 minutes every two weeks, and
 - 6) The failure of the Respondent's management to act of breaches of respecting and applying ministerial standards for social follow up for an extended period.
86. Complainant CRARR respectfully submits that the above practices and treatments constitute a discriminatory violation of core principles and provisions of the *Youth Protection Act*, namely:
 - 1) The principle stated in the Preamble whereby "interventions in respect of an Indigenous child must be carried out taking into account the circumstances and characteristics of his community or of another environment in which he lives so as to respect his right to equality and foster cultural continuity;"
 - 2) Article 131.1: The provisions of this chapter are aimed at adapting the other provisions of this Act to the Indigenous people, taking into account historical, social and cultural factors that are specific to them. They also aim to foster:
 - (a) a holistic approach;
 - (b) cultural continuity;
 - (...)
 - (d) the priority intervention of providers offering health services and social services to the community to prevent the situation of an Indigenous child from being taken in charge by the director; and
 - (e) the relationships of the child with multiple persons who are important to him.
 - 3) Article 131.4: In determining the interest of an Indigenous child, in addition to the factors listed in the second paragraph of section 3, the following factors must be taken into consideration:

- (a) the culture of the child's Indigenous community, including the language, customs, traditions and spirituality;
 - (b) the child's relationships with his extended family and members of that community;
 - (c) the child's access to the territory surrounding that community and other places that its members frequent; and
 - (d) the sociohistorical traumas of Indigenous people and their socioeconomic conditions.
87. Complainant CRARR respectfully submits that, by engaging practices of systemic racism identified above, Respondent CISSS-Laval violated the right to equality of the Victims without discrimination based on race intersecting with language and social condition, as guaranteed under s. 10 of the *Quebec Charter of Human Rights and Freedoms*;
88. Complainant CRARR respectfully submits that, by engaging practices of systemic racism identified above, Respondent CISSS-Laval also violated the following freedoms and rights of the Victims:
- 1) The right to personal security, inviolability, and freedom, as guaranteed under s. 1 of the *Charter*;
 - 2) The right to the safeguard of their dignity, as guaranteed under s. 4 of the *Charter*; and
 - 3) The right to access public services without discrimination, as guaranteed under s. 12 of the *Charter*.

THE RELIEF AND REMEDIES SOUGHT

Complainant CRARR, on behalf of James McGovern, Barron Tasnnie McGovern and Paisley Tsanie McGovern, asks that the Commission des droits de la personne et des droits de la jeunesse:

- **INVESTIGATE** the facts as described in the present Complaint, from the perspective of systemic racism in social services directed at Indigenous peoples, especially those who are English-speaking;
- **INVESTIGATE** Respondent CISSS-Laval's capacity in serving children and families from Indigenous communities and implementation of Jordan's Principle;
- **INVESTIGATE** the training and competency of Respondent CISSS-Laval's managers and professionals involved in the present case with regard to their provision of services to Indigenous peoples;
- **CONCLUDE** that Respondent CISSS-Laval practiced systemic racism towards the Victims and treated them in a discriminatory manner by reason of race intersecting with language and social condition, thereby violating their right to equality as guaranteed under s. 10 of the *Charter*;
- **CONCLUDE** that Respondent CISSS-Laval violated in a discriminatory manner the Victim's fundamental rights and freedoms, such as:
 - 1) The right to personal security, inviolability and freedom, as guaranteed under s. 1 of the *Charter*;
 - 2) The right to the safeguard of their dignity, as guaranteed under s. 4 of the *Charter*;
 - 3) The right to access public services without discrimination, as guaranteed

under s. 12 of the *Charter*.

- **ORDER** Respondent CISSS-Laval to jointly pay to each of the three Victims moral damages in the amount of \$30,000, for the violation of their dignity, integrity and security, humiliation, undue hardship and stress caused by their discriminatory acts;
- **ORDER** Respondent CISSS-Laval to pay to each of the three Victims punitive damages in the amount of \$10,000 for the intentional disregard and violation of the provisions of their rights as guaranteed under Jordan's Principle, the *Charter* and the *Youth Protection Act*;
- **ORDER** Respondent CISSS-Laval to implement Jordan's Principle and other provisions under Quebec laws to ensure full, equitable, and barrier-free access to social services for Indigenous peoples coming under their care, by adopting:
 - 1) A comprehensive policy on systemic racism in social services, as it applies to Indigenous people in particular;
 - 2) Mandatory training for all managers and helping professionals, on systemic anti-Indigenous racism, over a period of three consecutive years;
 - 3) An advisory structure composed of Indigenous peoples to oversee its implementation of Jordan's Principle and related measures, over a period of three consecutive years;
- **ORDER**, pursuant to s. 80 of the *Charter*, any other appropriate measures against the Respondent and demand, in favor of the Victims, any other measures of redress it considers appropriate.

THE WHOLE OF WHICH IS RESPECTFULLY SUBMITTED.

Tuesday, March 29, 2024

A handwritten signature in blue ink, appearing to be 'Fo Niemi', written over two horizontal lines.

Fo Niemi
Executive Director of CRARR and Official
Representative of the Victims James Robert
McGovern, Barran Tsannie McGovern and
Paisley Tsannie McGovern

LIST OF EXHIBITS

- EXHIBIT 1** Copy of September 13, 2021 Decision by the Tribunal de la jeunesse
- EXHIBIT 2** Copy of January 6, 2023 Decision by the Tribunal de la jeunesse
- EXHIBIT 3** Copy of March 20, 2023 PCQ Response Letter
- EXHIBIT 4** Copy of July 31, 2023 CDPDJ Response Letter
- EXHIBIT 5** Copy of the October 10, 2023 CDPDJ Response Letter
- EXHIBIT 6** Mandates delivered to CRARR